



# Senate

General Assembly

**File No. 174**

February Session, 2026

Substitute Senate Bill No. 231

*Senate, March 25, 2026*

The Committee on General Law reported through SEN. MARONEY of the 14th Dist., Chairperson of the Committee on the part of the Senate, that the substitute bill ought to pass.

**AN ACT CONCERNING THE DEPARTMENT OF CONSUMER PROTECTION'S RECOMMENDATIONS REGARDING CANNABIS REGULATION AND ELECTRONIC NICOTINE DELIVERY SYSTEM DEALER REGISTRATION.**

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Section 21a-408w of the general statutes is repealed and the  
2 following is substituted in lieu thereof (*Effective from passage*):

3 (a) Each cannabis establishment shall submit marijuana samples to a  
4 cannabis testing laboratory for testing [as set forth in subsection (b) of  
5 this section] in accordance with the laboratory testing standards  
6 established in the policies and procedures issued, and final regulations  
7 adopted, by the Commissioner of Consumer Protection pursuant to  
8 section 21a-421j.

9 [(b) (1) A cannabis testing laboratory shall test each marijuana sample  
10 submitted pursuant to subsection (a) of this section (A) for  
11 microbiological contaminants, mycotoxins, heavy metals and pesticide  
12 chemical residue, and (B) for purposes of conducting an active

13 ingredient analysis, if applicable.

14 (2) Microbiological contaminant testing conducted pursuant to  
15 subparagraph (A) of subdivision (1) of this subsection shall include, but  
16 not be limited to, microbiological contaminant testing for *Aspergillus*  
17 species as set forth by the Department of Consumer Protection and  
18 posted on the department's Internet web site.

19 (c) When conducting microbiological testing as set forth in subsection  
20 (b) of this section, the marijuana sample shall be tested by using (1) a  
21 molecular method that (A) includes quantitative polymerase chain  
22 reaction, (B) is certified for identifying microbiological DNA, and (C) is  
23 approved by (i) the Association of Official Analytical Collaboration  
24 International, or (ii) a comparable national or international standards  
25 organization designated by the Commissioner of Consumer Protection,  
26 or (2) an alternative testing method approved by the Department of  
27 Consumer Protection and posted on the department's Internet web site.]

28 [(d)] (b) If a marijuana sample [does not pass] fails the testing [set  
29 forth in] required under subsection [(b)] (a) of this section, the cannabis  
30 establishment that submitted [such] the failing marijuana sample to the  
31 cannabis testing laboratory shall, not later than sixty days after the date  
32 of such failed testing, either:

33 (1) Repeat the testing [as set forth in subsections] required under  
34 subsection (a) [and (b)] of this section on the marijuana batch from  
35 which such marijuana sample was taken, in a form and manner  
36 approved by the Department of Consumer Protection. If all repeated  
37 testing yields satisfactory results, the marijuana batch from which the  
38 marijuana samples were taken shall be released for sale; or

39 (2) If such cannabis establishment submits to the Commissioner of  
40 Consumer Protection a remediation plan that is sufficient to ensure  
41 public health and safety, and the commissioner approves such  
42 remediation plan, remediate the marijuana batch from which such  
43 marijuana sample was taken and repeat all testing [as set forth in  
44 subsections] required under subsection (a) [and (b)] of this section on

45 such remediated marijuana batch, in a form and manner approved by  
46 the Department of Consumer Protection. If all repeated testing yields  
47 satisfactory results, the marijuana batch from which the marijuana  
48 samples were taken shall be released for sale. [; or]

49 [(3)] (c) If [such] a cannabis establishment does not comply with  
50 [subdivision (1) or (2) of this] subsection (b) of this section, or if any  
51 subsequent laboratory testing does not yield satisfactory results for the  
52 testing [set forth in subsections] required under subsection (a) [and (b)]  
53 of this section, the cannabis establishment shall dispose of the entire  
54 marijuana batch from which the marijuana sample was taken in  
55 accordance with procedures established by the Commissioner of  
56 Consumer Protection, as published on the Department of Consumer  
57 Protection's Internet web site. The cannabis establishment shall  
58 complete such disposal not later than sixty days after the later of (1) the  
59 date of the failed testing performed pursuant to subsection (a) of this  
60 section, (2) the date of the failed repeated testing performed pursuant to  
61 subsection (b) of this section, or (3) if no repeated testing is performed  
62 pursuant to subsection (b) of this section, expiration of the sixty-day  
63 period established in subsection (b) of this section for the performance  
64 of such repeated testing. During such sixty-day period, the cannabis  
65 establishment may submit a written request to the department, in a form  
66 and manner prescribed by the commissioner, to extend such sixty-day  
67 period. The commissioner may grant or deny such request in the  
68 commissioner's discretion.

69 [(e)] (d) For purposes of the testing [set forth in subsections] required  
70 under subsection (a) [and (b)] of this section, the quantity and number  
71 of marijuana samples taken shall be sufficient to ensure representative  
72 sampling of the corresponding marijuana batch size.

73 Sec. 2. Subsection (c) of section 21a-415 of the 2026 supplement to the  
74 general statutes is repealed and the following is substituted in lieu  
75 thereof (*Effective from passage*):

76 (c) (1) Any applicant for a dealer registration or a renewal of a dealer  
77 registration shall apply to the Department of Consumer Protection, in a

78 form and manner prescribed by the Commissioner of Consumer  
79 Protection, which application shall include, at a minimum:

80 (A) The name, address and electronic mail address of the applicant;

81 (B) The location that is to be operated under such dealer registration;

82 (C) The name of, and contact information for, each individual who  
83 has a direct or indirect financial interest in such applicant, unless (i) such  
84 applicant is a publicly traded company listed on a national stock  
85 exchange, or (ii) the financial interest held by such individual owner and  
86 such individual's spouse, parents and children, in the aggregate, does  
87 not exceed ten per cent of the total ownership or interest rights in such  
88 applicant;

89 (D) A third-party local and national criminal background check for  
90 each owner listed on such application, which background check shall (i)  
91 be conducted by a third-party consumer reporting agency or  
92 background screening company that is in compliance with the federal  
93 Fair Credit Reporting Act and accredited by the Professional  
94 Background Screening Association, (ii) include a multistate and  
95 multijurisdiction criminal record locator or other similar commercial  
96 nation-wide database with validation and such other background  
97 screening as the commissioner may require, and (iii) be requested by  
98 such applicant not more than sixty days prior to submission of such  
99 application;

100 (E) The name of the individual who shall serve as the fiduciary agent  
101 and guarantor for such applicant, which individual shall be personally  
102 liable in the event of any noncompliance that results in a debt owed to  
103 the department;

104 (F) A disclosure of any enforcement action against, and any  
105 negotiated settlement entered into by, such applicant or any owner  
106 disclosed pursuant to this subsection, which action or settlement is  
107 related to the sale of cigarettes, electronic nicotine delivery systems,  
108 tobacco products or vapor products;

109 (G) The name of a manager or supervisor who is or will be physically  
110 present at such applicant's location or proposed location; and

111 (H) A certification that an authorized owner or named designee of  
112 such applicant has successfully completed the online prevention  
113 education program administered by the Department of Mental Health  
114 and Addiction Services pursuant to section 17a-719.

115 (2) The Department of Consumer Protection: (A) May require that an  
116 applicant submit documents sufficient to establish that state and local  
117 building, fire and zoning requirements will be met at the location of any  
118 sale; (B) may, in the department's discretion, conduct an investigation to  
119 determine whether a dealer registration shall be issued to an applicant;  
120 and (C) shall not issue a dealer registration or a renewal of a dealer  
121 registration to an applicant unless the applicant certifies that an  
122 authorized owner or named designee of the applicant has successfully  
123 completed the online prevention education program administered by  
124 the Department of Mental Health and Addiction Services pursuant to  
125 section 17a-719.

126 (3) The commissioner shall issue a dealer registration or a renewal of  
127 a dealer registration to any such applicant not later than thirty days after  
128 the date of application unless the commissioner finds: (A) The applicant,  
129 or any individual named in such application pursuant to subparagraph  
130 (C) of subdivision (1) of this subsection, has made a materially false or  
131 misleading statement in such application or in any other application  
132 made to the commissioner; (B) the applicant has neglected to pay any  
133 taxes due to this state; (C) the authorized owner or named designee of  
134 the applicant has not successfully completed the online prevention  
135 education program administered by the Department of Mental Health  
136 and Addiction Services pursuant to section 17a-719; (D) the third-party  
137 local and national criminal background check for any authorized owner  
138 or named designee of the applicant [has a criminal history that is]  
139 affords a sufficient basis for denial under section 46a-80; or (E) the  
140 applicant, any authorized owner of the applicant or any entity owned  
141 or managed by any individual named in the applicant's application

142 pursuant to subparagraph (C) of subdivision (1) of this subsection (i) has  
143 [violated] committed multiple violations of any other provision of this  
144 section, (ii) is the subject of a delinquency assessment from the  
145 Department of Revenue Services, or (iii) is the subject of any other  
146 adverse administrative decision from a government agency.

147 (4) A dealer registration issued under this section shall be renewed  
148 annually and may be suspended or revoked at the discretion of the  
149 Department of Consumer Protection. A dealer registration shall not  
150 constitute property, nor shall it be subject to attachment and execution,  
151 nor shall it be alienable. Each holder of a dealer registration shall  
152 annually attest in each renewal application as to whether such holder  
153 derived at least fifty per cent of its annual gross revenue from sales of  
154 cigarettes, drug paraphernalia, electronic nicotine delivery systems,  
155 nicotine products, synthetic nicotine, tobacco products and vapor  
156 products.

157 (5) The applicant shall pay to the department a nonrefundable  
158 application fee of one thousand dollars, which fee shall be in addition to  
159 the annual fee prescribed in subsection (d) of this section. An application  
160 fee shall not be charged for an application to renew a dealer registration.

161 Sec. 3. Subdivision (1) of section 21a-420 of the 2026 supplement to  
162 the general statutes is repealed and the following is substituted in lieu  
163 thereof (*Effective from passage*):

164 (1) "Responsible and Equitable Regulation of Adult-Use Cannabis  
165 Act" or "RERACA" means this section, sections 2-56j, 7-294kk, 7-294ll,  
166 12-330ll to 12-330nn, inclusive, 14-227p, 21a-278b, 21a-278c, 21a-279c,  
167 21a-279d, 21a-408w, as amended by this act, 21a-420a to 21a-420j,  
168 inclusive, 21a-420l to 21a-421u, inclusive, 21a-421aa to 21a-421ff,  
169 inclusive, 21a-421aaa to 21a-421iii, inclusive, 21a-422 to 21a-422c,  
170 inclusive, 21a-422e to 21a-422g, inclusive, 21a-422j to 21a-422s, inclusive,  
171 21a-422u, 22-61n, 23-4b, 47a-9a, 53-247a, 53a-213a, 53a-213b, 54-33p, 54-  
172 56q, 54-56r, 54-125k and 54-142u, sections 23, 60, 63 to 65, inclusive, 124,  
173 144 and 165 of public act 21-1 of the June special session, and the  
174 amendments in public act 21-1 of the June special session to sections 7-

175 148, 10-221, 12-30a, 12-35b, 12-412, 12-650, 12-704d, 14-44k, 14-111e, 14-  
176 227a to 14-227c, inclusive, 14-227j, 15-140q, 15-140r, 18-100h, 19a-342,  
177 19a-342a, 21a-267, 21a-277, 21a-279, 21a-279a, 21a-408 to 21a-408f,  
178 inclusive, 21a-408h to 21a-408p, inclusive, 21a-408r to 21a-408v,  
179 inclusive, 30-89a, 31-40q, 32-39, 46b-120, 51-164n, 53-394, 53a-39c, 54-1m,  
180 54-33g, 54-41b, 54-56e, 54-56g, 54-56i, 54-56k, 54-56n, 54-63d, 54-66a and  
181 54-142e, [and] section 22 of public act 25-101 and section 4 of this act;

182 Sec. 4. (NEW) (*Effective from passage*) (a) Each cannabis establishment  
183 shall submit cannabis samples to a cannabis testing laboratory for  
184 testing in accordance with the laboratory testing standards established  
185 in the policies and procedures issued, and final regulations adopted, by  
186 the commissioner pursuant to section 21a-421j of the general statutes.

187 (b) If a cannabis sample fails the testing required under subsection (a)  
188 of this section, the cannabis establishment that submitted the failing  
189 cannabis sample to the cannabis testing laboratory shall, not later than  
190 sixty days after the date of such failed testing, either:

191 (1) Repeat the testing required under subsection (a) of this section on  
192 the cannabis batch from which such cannabis sample was taken, in a  
193 form and manner approved by the department. If all repeated testing  
194 yields satisfactory results, the cannabis batch from which the cannabis  
195 samples were taken shall be released for sale; or

196 (2) If such cannabis establishment submits to the commissioner a  
197 remediation plan that is sufficient to ensure public health and safety,  
198 and the commissioner approves such remediation plan, remediate the  
199 cannabis batch from which such cannabis sample was taken and repeat  
200 all testing required under subsection (a) of this section on such  
201 remediated cannabis batch, in a form and manner approved by the  
202 department. If all repeated testing yields satisfactory results, the  
203 cannabis batch from which the cannabis samples were taken shall be  
204 released for sale.

205 (c) If a cannabis establishment does not comply with subsection (b) of  
206 this section, or if any subsequent laboratory testing does not yield

207 satisfactory results for the testing required under subsection (a) of this  
 208 section, the cannabis establishment shall dispose of the entire cannabis  
 209 batch from which the cannabis sample was taken in accordance with  
 210 procedures established by the commissioner, as published on the  
 211 department's Internet web site. The cannabis establishment shall  
 212 complete such disposal not later than sixty days after the later of (1) the  
 213 date of the failed testing performed pursuant to subsection (a) of this  
 214 section, (2) the date of the failed repeated testing performed pursuant to  
 215 subsection (b) of this section, or (3) if no repeated testing is performed  
 216 pursuant to subsection (b) of this section, expiration of the sixty-day  
 217 period established in subsection (b) of this section for the performance  
 218 of such repeated testing. During such sixty-day period, the cannabis  
 219 establishment may submit a written request to the department, in a form  
 220 and manner prescribed by the commissioner, to extend such sixty-day  
 221 period. The commissioner may grant or deny such request in the  
 222 commissioner's discretion.

223 (d) For purposes of the testing required under subsection (a) of this  
 224 section, the quantity and number of cannabis samples taken shall be  
 225 sufficient to ensure representative sampling of the corresponding  
 226 cannabis batch size.

|                                                                               |                     |             |
|-------------------------------------------------------------------------------|---------------------|-------------|
| This act shall take effect as follows and shall amend the following sections: |                     |             |
| Section 1                                                                     | <i>from passage</i> | 21a-408w    |
| Sec. 2                                                                        | <i>from passage</i> | 21a-415(c)  |
| Sec. 3                                                                        | <i>from passage</i> | 21a-420(1)  |
| Sec. 4                                                                        | <i>from passage</i> | New section |

**GL** Joint Favorable Subst.



*The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.*

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**OFA Fiscal Note****State Impact:** None**Municipal Impact:** None**Explanation**

The bill makes various changes regarding cannabis testing and adds to the grounds for the Department of Consumer Protection to deny an electronic nicotine delivery system dealer registration resulting in no fiscal impact to the state.

**The Out Years****State Impact:** None**Municipal Impact:** None

**OLR Bill Analysis****sSB 231*****AN ACT CONCERNING THE DEPARTMENT OF CONSUMER PROTECTION'S RECOMMENDATIONS REGARDING CANNABIS REGULATION AND ELECTRONIC NICOTINE DELIVERY SYSTEM DEALER REGISTRATION.*****SUMMARY**

This bill generally sets a 60-day deadline to dispose of medical marijuana and cannabis samples that fail testing. It also requires each cannabis establishment (see BACKGROUND) to submit cannabis or medical marijuana to a cannabis testing laboratory for testing based on standards set in the Department of Consumer Protection's (DCP) policies and procedures or regulations. Current policies and procedures have substantially similar requirements as under current law (for example, microbiological contaminant testing, mycotoxins, heavy metals, and pesticide chemical residue).

The bill also (1) adds to the grounds for which DCP may deny an e-cigarette dealer registration, including when a background check associated with the application (not just the applicant) reveals a sufficient reason for denial based on conviction information, and (2) specifies that the same grounds apply to denials of renewals.

It also makes various minor and technical changes.

EFFECTIVE DATE: Upon passage

**FAILED TEST DEADLINES**

Existing law requires each cannabis establishment to submit marijuana (cannabis) samples to a cannabis testing laboratory for testing. For samples that fail, cannabis establishments may repeat the test, remediate the sample and then retest, or dispose the batch.

The bill requires the cannabis establishment to choose one of these options within 60 days after the failed test. For disposals, the bill requires the establishment to complete them within 60 days of the failed test or failed repeat test, whichever is later. During the 60-day period, the cannabis establishment may submit a written request to DCP, in a commissioner-prescribed way, to extend the 60-day period. The commissioner may grant or deny the request in his discretion.

### **E-CIGARETTE DEALER DENIALS**

Existing law generally requires the DCP commissioner to issue an e-cigarette dealer registration within 30 days of application unless the commissioner finds certain issues with the applicant. The bill extends this time requirement and grounds for denial to renewals and adds to the reasons for denial by including instances where:

1. any individual named on the application (people with certain financial interests in it) made a materially false or misleading statement on the application, rather than just the applicant;
2. the third-party local and national criminal background check for any authorized owner or applicant's named designee provides a sufficient reason to deny under the state laws for denying employment based on conviction information, rather than just when the applicant has such a criminal history;
3. the applicant, any authorized owner, or entity owned or managed by anyone named on the application has committed multiple violations of the e-cigarette dealer law, rather than just when the applicant has committed one violation; and
4. the applicant or such an owner or entity is the subject of (a) a Department of Revenue Service delinquency assessment or (b) any other adverse administrative decision from a government agency.

Existing law sets several other grounds for which DCP may refuse to grant or renew a dealer registration, such as fraudulent or deceitful

practices or failure to maintain effective controls against theft, diversion, or loss.

## **BACKGROUND**

### ***Cannabis Establishment***

A “cannabis establishment” is a cannabis producer, dispensary facility, cultivator, micro-cultivator, retailer, hybrid retailer (one licensed to sell both recreational cannabis and medical marijuana), food and beverage manufacturer, product manufacturer or packager, delivery service, or transporter.

### ***Related Bill***

sHB 5228, favorably reported by the General Law Committee, adds to the grounds for which DCP may deny an initial or renewal e-cigarette dealer registration, to include when the applicant (1) exceeds certain limitations on annual gross revenue and the use of retail sales area, or (2) for renewals only, is located in a municipality that already includes one dealer for every 2,500 residents.

## **COMMITTEE ACTION**

General Law Committee

Joint Favorable Substitute

Yea    20    Nay   0    (03/11/2026)